Number 12 *of* 2006

REGISTRATION OF DEEDS AND TITLE ACT 2006

REVISED

Updated to 1 January 2018

This revised Act is an administrative consolidation of the *Registration of Deeds and Title Act 2006*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Finance Act 2017* (41/2017), enacted 25 December 2017, and all statutory instruments up to and including *Legal Metrology (Measuring Instruments) Act 2017 (Commencement) Order 2018* (S.I. No. 1 of 2018), made 4 January 2018, were considered in the preparation of this revision.

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AN ACT TO ESTABLISH A BODY TO BE KNOWN AS AN tÚDARÁS CLÁRÚCHÁIN MAOINE OR, IN THE ENGLISH LANGUAGE, THE PROPERTY REGISTRATION AUTHORITY, WITH THE FUNCTIONS CONFERRED ON IT BY THIS ACT, INCLUDING THE MANAGEMENT AND CONTROL OF THE REGISTRY OF DEEDS AND THE LAND REGISTRY, TO REPEAL AND RE-ENACT, WITH AMENDMENTS, THE LAW RELATING TO THE REGISTRATION OF DEEDS AND OTHER DOCUMENTS AFFECTING LAND, TO AMEND THE LAW RELATING TO THE REGISTRATION OF TITLE TO LAND AND TO AMEND SECTIONS 16 AND 28 OF THE LANDLORD AND TENANT (GROUND RENTS) (NO. 2) ACT 1978.

[7*th May*, 2006]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

PART 1

Preliminary and General

Short title, collective citation and construction.

1.— (1) This Act may be cited as the Registration of Deeds and Title Act 2006.

(2) The Registration of Title Act 1964 and this Act (other than *sections 76* and *77*) may be cited together as the Registration of Deeds and Title Acts 1964 and 2006 and are to be construed together as one.

Commencement.

2.— (1) Subject to *subsection (2)*, this Act comes into operation on such day or days as the Minister may appoint by order or orders either generally or with reference to any particular purpose or provision, and different days may be so appointed for different purposes or provisions.

(2) *Sections 76* and *77* come into operation on the passing of this Act.

Interpretation.

3.— In this Act—

"Act of 1964" means the Registration of Title Act 1964;

"Authority" means the Property Registration Authority established under *section 9*;

"general rules" means rules under *section 48* or under section 126 of the Act of 1964;

"Minister" means the Minister for Justice, Equality and Law Reform.

declare that the holder is entitled to compensation for the loss and determine the amount of the loss.

(6) Compensation to which a person is entitled pursuant to the declaration of the court is payable by the Minister for Finance out of moneys provided by the Oireachtas.

(7) The Minister for Finance shall have the same right to recover the amount of the compensation from any person who caused or derived advantage from the loss as the holder of the lien would have had if the loss were an injury caused to him or her by that person.

(8) Interest is payable on any amount recoverable by the Minister for Finance in accordance with *subsection (7)* from the date of payment of the compensation at the rate for the time being standing specified under section 26 of the Debtors (Ireland) Act 1840.

(9) In this section—

"holder", in relation to a lien, includes any person deriving title from the holder of the lien;

"published" means published by way of advertisement both in the national daily newspapers and in broadcasts for reception by the general public, whether the broadcasts are actually received or not.

Registration of Deeds and Title Rules Committee.

74.— (1) On the commencement of this section there stands established a committee, to be known as the Registration of Deeds and Title Rules Committee, to perform the functions assigned to it under *section 48*and under section 126, as amended by *section 72*, of the Act of 1964.

(2) The Committee shall consist of—

(*a*) the judge of the High Court for the time being assigned for that purpose by the President of the High Court,

(*b*) the chairperson of the Authority,

(*c*) the Chief Executive of the Authority,

(*d*) a practising barrister nominated by the General Council of the Bar of Ireland, and

(*e*) a practising solicitor nominated by the Council of the Law Society of Ireland.

(3) The judge of the High Court so assigned shall be chairperson, and the Chief Executive of the Authority secretary, of the Committee.

(4) A nominated barrister or solicitor shall hold office as such member for 5 years from the date of the nomination, unless he or she sooner dies, resigns or ceases to be a practising barrister or practising solicitor.

(5) A nominated barrister or solicitor whose membership expires by lapse of time is eligible for renomination.

(6) The quorum of the Committee is 3 members.

(7) The Committee may act notwithstanding a vacancy in its membership.

(8) Pending the making of rules under this section the rules made by the Registration of Title Rules Committee and in force immediately before the commencement of this section shall continue in force, with any necessary modifications.

Reports by Committee.

75.— (1) The secretary of the Registration of Deeds and Title Rules Committee shall summon a meeting of the Committee once at least in every year, on such day as may be fixed by the chairperson of the Committee, to consider practice, procedure and administration under the Act of 1964 and this Act and the operation and effect of those Acts.

(2) As soon as may be after every such meeting the Committee shall report to the Minister whether any and, if so, what amendments or alterations should in its opinion be made in practice, procedure or administration under the said Acts with a view to improving their operation and effect.

Amendment of section 16 of Landlord and Tenant (Ground Rents) (No. 2) Act 1978.

76.— (1) Section 16 (restrictions on right to acquire fee simple) of the Landlord and Tenant (Ground Rents) (No. 2) Act 1978 is amended—

(*a*) in subsection (2)(*e*), by the deletion of "Act." and the insertion of "Act, or",

(*b*) by the insertion of the following paragraph after subsection (2)(*e*):

"(*f*) subject to subsection (3), a sublease of land granted by a lessee who is not a person to whom this Part applies—

(i) on or after 27 February 2006, or

(ii) before that date, unless before that date—

(I) a notice of intention to acquire the fee simple in the land was served by the sublessee in accordance with section 4 of the Act of 1967, or

(II) an application was made by the sublessee to the Registrar of Titles under Part III of this Act.",

and

(*c*) by the addition of the following subsections:

"(3) Subsection (2)(*f*) does not apply where—

(*a*) at the date on which the sublease is granted, the sole reason why the lessee is not a person to whom this Part applies is that a covenant by the lessee to erect permanent buildings on the land has not been substantially complied with, and

(*b*) after that date, the covenant is substantially complied with by the sublessee.

(4) In this section, "sublessee" includes the personal representatives and successors in title of a sublessee.".

Amendment of section 28 of Landlord and Tenant (Ground Rents) (No. 2) Act 1978.

77.— Section 28 (effect of acquisition of fee simple on covenants) of the Landlord and Tenant (Ground Rents) (No. 2) Act 1978 is amended by the substitution of the following subsections for subsection (1):

"(1) Subject to subsection (1A), where a person to whom Part II of this Act applies acquires the fee simple in land under the Act of 1967 or Part III of this Act—

(*a*) covenants (except any of those specified in subsection (2)) affecting the land in the lease under which the person held the land thereupon cease to have effect, and

(*b*) no new covenant affecting the land shall be created when the fee simple is being conveyed, except with the person's agreement.